



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 09/02/2026 - 09:00 AM

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Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

**IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA IN AND FOR THE COUNTY
OF SAN MATEO**

Probate

Department 13

Courtroom 2C

Hon. Lisa A. Novak

September 2, 2026 - 9:00 AM

If an appearance by Zoom is allowed, parties must appear through Zoom Video.

Zoom Audio is only to be used if Zoom Video is unavailable.

Please check in with the clerk by 8:45 AM.

Zoom Video/Audio Information	Zoom Phone-Audio Only Information Please Note: You must join by dialing in from a telephone; credentials will not work from a tablet or PC
<u>Click on this link to join the Zoom meeting (no meeting ID or passcode required):</u> Meeting ID: 161 920 9458 PASSWORD: 696850	Phone number: 1 (669) 254-5252 Meeting ID: 161 920 9458 PASSWORD: 696850

If a tentative ruling contains "APPEARANCE ORDERED", failure to appear may cause the Petition to be denied or Opposition stricken. Remote appearance is allowed BUT FOR all matters in which SIJF are sought, and where the Court has ordered an In Person appearance. Failure to appear may result in sanctions.

If a tentative ruling contains "APPEARANCE OPTIONAL", failure to appear is a waiver of oral argument and the Court may issue orders differing from the tentative ruling. Zoom is allowed for all optional appearances.

If a tentative ruling contains "NO APPEARANCE", an appearance is not required, as the matter has been pre-approved, continued, or dropped, as described.

If you wish to appear in response to the tentative ruling or in opposition to a petition, you must notify the probate clerk at dept13@sanmateocourt.org and all other parties of the intent to appear. All notifications must be completed no later than 4:00 p.m. on the court day immediately preceding the day of the hearing.



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17-PRO-00357	Conservatorship of MAXIMILIAN MAGNOLI	
Line 1	Proposed Conservatee: MAGNOLI, MAXIMILIAN Petitioner: MAGNOLI-MEYER, SONIA (STENEBERG, JENNIFER L) Proposed Conservator: MAGNOLI, ALEXANDRA Proposed Conservator: MAGNOLI-MEYER, SONIA (STENEBERG, JENNIFER L) Conservatee: MAGNOLI, MAXIMILIAN Conservator: MAGNOLI, ALEXANDRA Conservator: MAGNOLI-MEYER, SONIA (STENEBERG, JENNIFER L) Mother: MAGNOLI-MEYER, SONIA (STENEBERG, JENNIFER L) Sister: MAGNOLI, ALEXANDRA	Conservatorship Review - Biennial
Tentative Ruling: NO APPEARANCE The conservatorship shall continue and be reviewed in two (2) years. The assessment amount of \$850.00 for the cost of the court's investigation is ordered and deferred until the Court determines sufficient funds exist.		

17-PRO-00387	CONSERVATORSHIP OF GIOVANNI JACOB JIMENEZ	
Line 2	Petitioner: GARCIA, KARINA aka KARINA MACAY (KING, LEIF B.) Conservatee: JIMENEZ, GIOVANNI Conservator: GARCIA, KARINA aka KARINA MACAY (KING, LEIF B.) Mother: GARCIA, KARINA aka KARINA MACAY (KING, LEIF B.)	Conservatorship Review - Biennial
Tentative Ruling: NO APPEARANCE The conservatorship shall continue and be reviewed in two (2) years. The assessment amount of \$850.00 for the cost of the court's investigation is ordered and deferred until the Court determines sufficient funds exist.		



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22-PRO-01044	Estate of Esther M Mazurek	FIRST AND FINAL REPORT OF EXECUTORS ON WAIVER OF ACCOUNTING AND PETITION FOR ITS SETTLEMENT; FOR ALLOWANCE OF ATTORNEYS' FEES FOR ORDINARY SERVICES; FOR REIMBURSEMENT OF COSTS ADVANCED; AND FOR FINAL DISTRIBUTION
Line 3	Petitioner: Garcia, Marco (TAGRE, PABLO A. CAPRON, ERIC D.) Decedent: Mazurek, Esther M Interested Party: DEPARTMENT OF HEALTH CARE SERVICES Interested Party: Dowling, Donald J, ESQ Personal Representative: GARCIA, MARCO Personal Representative: GARCIA, MARTHA (TAGRE, PABLO A. CAPRON, ERIC D.) Claimant: DEPARTMENT OF HEALTH CARE SERVICES	Petition for Final Distribution

Tentative Ruling:

NO APPEARANCE

Petition for Final Distribution does not set out the specific asset distribution, as is required by LR 4.56. As such, it is continued for counsel to file a supplement which complies with LR 4.56. The next hearing is October 5, 2026 at 9:00 a.m.. Formal order required.



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25-PRO-01072	IN THE MATTER OF THE CHISUM FAMILY TRUST, DATED MARCH 1, 2001	RE: Mediation Results
Line 4	Petitioner: Chisum, Mark Wesley (LOVEMAN, JOHN A O'HARE, RICHARD) Trustor: CHISUM, BONNIE LEA Decedent: CHISUM, CHARLES W. Respondent: ALBRECHT, MAURA (RUEPPEL, JOHN S.) Mediator: POLLAK, COREY M.	Status Hearing
Tentative Ruling: APPEARANCE OPTIONAL The Court intends to sign the order APPROVING SETTLEMENT AGREEMENT AND CONFIRMING ALERUS ACCOUNT AS A TRUST ASSET which was submitted on the ex parte calendar on August 24, 2026.		

25-PRO-01131	Conservatorship of SUNNY JEON	
Line 5	Proposed Conservatee: Jeon, Sunny H. Petitioner: SAN MATEO COUNTY PUBLIC GUARDIAN (SAN MATEO COUNTY ATTORNEY'S OFFICE ELLARD, JAN E.) Conservatee: Jeon, Sunny H. Proposed Conservator: SAN MATEO COUNTY PUBLIC GUARDIAN (SAN MATEO COUNTY ATTORNEY'S OFFICE) Temporary Conservatee: Jeon, Sunny H. Conservator: SAN MATEO COUNTY PUBLIC GUARDIAN (SAN MATEO COUNTY ATTORNEY'S OFFICE) Temporary Conservator: SAN MATEO COUNTY PUBLIC GUARDIAN (SAN MATEO COUNTY ATTORNEY'S OFFICE)	General Plan
Tentative Ruling: NO APPEARANCE OFF CALENDAR, purpose of hearing satisfied.		



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25-PRO-01356	Conservatorship of Ryan Ho	
Line 6	Proposed Conservatee: Ho, Ryan (LEE, DENISE MICHELE) Petitioner: Ho, Kenneth (Pro Se) Petitioner: Wu, Gloria (Pro Se) Proposed Conservator: Ho, Kenneth Proposed Conservator: Wu, Gloria	Appointment of Conservator for Person

Tentative Ruling:

APPEARANCE ORDERED (Zoom allowed)

The Petition to Appoint Conservator of the Person is GRANTED as follows:

1. Kenneth Ho and Gloria Wu are appointed limited conservators of the person of Ryan Ho, and a limited conservatorship is the least restrictive alternative to protect the limited conservatee.
2. The conservatorship order shall be effective on September 25, 2026, when the limited conservatee attains the age of majority.
3. The limited conservatee's attendance at the hearing is waived.
4. The request for medical authority under Probate Code §2355 is denied. As this is a petition for a limited conservatorship, medical authority is granted under Probate Code §2351.5 to maintain clarity and consistency in the powers granted to the limited conservators.
5. The following limited powers are granted to the limited conservators pursuant to Probate Code §2351.5 and the limited conservatee's civil and legal rights will be limited in the following areas:
 - a. To fix the residence or specific dwelling of the limited conservatee;
 - b. Access to the confidential records and papers of the limited conservatee;
 - c. The right to contract;
 - d. The power to give or withhold medical consent; and
 - e. Decisions concerning the education of the limited conservatee.
6. A nonappearance hearing on the limited conservators' filing of the Confidential Conservatorship Care Plan Parts 1 & 2 (GC-355 & GC-356) within one hundred twenty (120) days of appointment is set for January 4, 2027 at 9:00 am.
7. Pursuant to Probate Code §1830, the limited conservators file a proof of mailing of the Notice of Conservatee's Rights within thirty (30) days of appointment.
8. The limited conservators shall attend conservator education classes within six (6) months of being appointed limited conservators and a Proof of Completion be filed with the Court.
9. The assessment amount of \$850.00 for the cost of this investigation is ordered and deferred until the Court determines sufficient funds exist.
10. The conservatorship shall be reviewed in one (1) year.



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Reporter: Conde, Wendy

25-PRO-01499	IN RE THE 1992 GENERATION-SKIPPING TRUST FOR THE BENEFIT OF DAPHNE DAPHNE	Petition for Removal of Trustee Daphne Daphne and Appointment of Successor Trustee of the 1992 Generation Skipping Trust Agreement for the Benefit of Daphne Daphne-Continued from 04/07/26
Line 7 through 11	Petitioner: Daphne, Orea Krestine (SYME, DAVID MICHAEL) Trustor: DAPHNE, VIRGINIA Respondent: Daphne, Autumn (SPECTOR, DANIEL I) Respondent: Daphne, Laurel (SPECTOR, DANIEL I)	Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL [Related matters at line 7-11]

The Court adopts the Daphne Daphne's Guardian Ad Litem's recommendations filed in case no. **25-PRO-01540** [Line 11] as found in the supplement filed 6/25/2026. The court notes that the GAL's original recommendation/report was filed 4/27/2026, not 5/1/2026 as is set forth in paragraph 1 at line 22 of the GAL supplement.

The Court makes the finding that Daphne Daphne is incapacitated and unable to act as Trustee. A successor trustee will need to be appointed. The parties in this case are ordered to mediate pursuant to *Breslin v. Breslin* (2021) 62 Cal.App.5th 801 within ninety (90) days, in an attempt to obtain an agreement between them as to an appropriate, neutral, replacement for Ms. Daphne as Trustee of all trusts over which this court has jurisdiction. If the parties cannot jointly agree to one neutral private professional fiduciary, they shall jointly submit to the Court a list of up to three names of neutral private professional fiduciaries to whom they can agree and the court will choose one of the names to succeed Ms. Daphne as Trustee.

This Amended Petition is CONTINUED to January 29, 2027 at 9:00 am for status and for Petitioner to file an amended proof of service showing that all non-represented persons were mailed a copy of the amended petition and notice of hearing or provide a copy of the Judicial Counsel form Consent to Electronic Service for each non-represented person who was emailed notice. Any objections or responses to the Amended Petition are ordered to be filed at least ten (10) days before the next hearing. If the parties cannot agree on a neutral private professional fiduciary, then the joint list will also be due ten (10) days prior to the next hearing.



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25-PRO-01535	IN RE THE: THE NON-EXEMPT GENERATION-SKIPPING TRUST FOR THE BENEFIT OF DAPHNE DAPHNE AND THE EXEMPT GENERATION-SKIPPING TRUST FOR THE BENEFIT OF DAPHNE DAPHNE	PETITION FOR: REMOVAL OF GENERAL AND SPECIAL TRUSTEE AND; APPOINTMENT OF SUCCESSOR GENERAL AND SPECIAL TRUSTEE-Continued from 04/07/26
Line 8[7 through 11]	Petitioner: Daphne, Orea Krestine (SYME, DAVID MICHAEL) Trustor: DAPHNE, NICHOLAS P. Trustor: DAPHNE, VIRGINIA	Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL [Related matters at line 7-11]

The Court adopts the Daphne Daphne's Guardian Ad Litem's recommendations filed in case no. 25-PRO-01540. The court notes that the GAL's original recommendation/report was filed 4/27/2026, not 5/1/2026 as is set forth in paragraph 1 at line 22 of the GAL supplement.

The Court makes the finding that Daphne Daphne is incapacitated and unable to act as Trustee. A successor trustee will need to be appointed. The parties in this case are ordered to mediate pursuant to *Breslin v. Breslin* (2021) 62 Cal.App.5th 801 within ninety (90) days, in an attempt to obtain an agreement between them as to an appropriate, neutral, replacement for Ms. Daphne as Trustee of the Trust at issue. If the parties cannot jointly agree to one neutral private professional fiduciary, they shall jointly submit to the Court a list of up to three names of neutral private professional fiduciaries to whom they can agree and the court will choose one of the names to succeed Ms. Daphne as Trustee.

This Amended Petition is CONTINUED to January 29, 2027 at 9:00 am for status and for Petitioner to file an amended proof of service showing that all non-represented persons were mailed a copy of the amended petition and notice of hearing or provide a copy of the Judicial Counsel form Consent to Electronic Service for each non-represented person who was emailed notice. Any objections or responses to the Amended Petition are ordered to be filed at least ten (10) days before the next hearing. If the parties cannot agree on a neutral private professional fiduciary, then the joint list will also be due ten (10) days prior to the next hearing.



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25-PRO-01536	IN RE THE DAPHNE NON-EXEMPT MARITAL TRUST (ARTICLE 4) OF THE 1987 TRUST AGREEMENT OF NICHOLAS P. DAPHNE AND VIRGINIA DAPHNE AND DAPHNE EXEMPT MARITAL TRUST (ARTICLE 4) OF THE 1987 TRUST AGREEMENT OF NICHOLAS P. DAPHNE AND VIRGINIA DAPHNE	PETITION FOR: REMOVAL OF TRUSTEE AND; APPOINTMENT OF SUCCESSOR TRUSTEE- Continued from 04/07/26
Line 9 [Line 7 through 11]	Petitioner: Daphne, Orea Krestine (SYME, DAVID MICHAEL) Trustor: DAPHNE, NICHOLAS P. Trustor: DAPHNE, VIRGINIA	Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL [Related matters at line 7-11]

The Court adopts the Daphne Daphne's Guardian Ad Litem's recommendations filed in case no. 25-PRO-01540. The court notes that the GAL's original recommendation/report was filed 4/27/2026, not 5/1/2026 as is set forth in paragraph 1 at line 22 of the GAL supplement.

The Court makes the finding that Daphne Daphne is incapacitated and unable to act as Trustee. The parties in this case are ordered to mediate pursuant to *Breslin v. Breslin* (2021) 62 Cal.App.5th 801 within ninety (90) days, in an attempt to obtain an agreement between them as to an appropriate, neutral, replacement for Ms. Daphne as Trustee of the Trust at issue. If the parties cannot jointly agree to one neutral private professional fiduciary, they shall jointly submit to the Court a list of up to three names of neutral private professional fiduciaries to whom they can agree and the court will choose one of the names to succeed Ms. Daphne as Trustee. This Amended Petition is CONTINUED to January 29, 2027 at 9:00 am for status and for Petitioner to file an amended proof of service showing that all non-represented persons were mailed a copy of the amended petition and notice of hearing or provide a copy of the Judicial Counsel form Consent to Electronic Service for each non-represented person who was emailed notice. Any objections or responses to the Amended Petition are ordered to be filed at least ten (10) days before the next hearing. If the parties cannot agree on a neutral private professional fiduciary, then the joint list will also be due ten (10) days prior to the next hearing.



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25-PRO-01537	IN RE THE 1992 GENERATION-SKIPPING TRUST FOR THE BENEFIT OF OREA KRESTINE DAPHNE	PETITION FOR: REMOVAL OF SPECIAL TRUSTEE AND; APPOINTMENT OF SUCCESSOR SPECIAL TRUSTEE- Continued from 04/07/26
Line 10 [Line 7 through 11]	Petitioner: Daphne, Orea Krestine (SYME, DAVID MICHAEL) Trustor: Daphne, Virginia Decedent: DAPHNE, VIRGINIA	Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL [Related matters at line 7-11]

The Court adopts the Daphne Daphne's Guardian Ad Litem's recommendations filed in case no. 25-PRO-01540. The court notes that the GAL's original recommendation/report was filed 4/27/2026, not 5/1/2026 as is set forth in paragraph 1 at line 22 of the GAL supplement.

The Court makes the finding that Daphne Daphne is incapacitated and unable to act as Trustee. The parties in this case are ordered to mediate pursuant to *Breslin v. Breslin* (2021) 62 Cal.App.5th 801 within ninety (90) days, in an attempt to obtain an agreement between them as to an appropriate, neutral, replacement for Ms. Daphne as Trustee of the Trust at issue. If the parties cannot jointly agree to one neutral private professional fiduciary, they shall jointly submit to the Court a list of up to three names of neutral private professional fiduciaries to whom they can agree and the court will choose one of the names to succeed Ms. Daphne as Trustee.

This Amended Petition is CONTINUED to January 29, 2027 at 9:00 am for status and for Petitioner to file an amended proof of service showing that all non-represented persons were mailed a copy of the amended petition and notice of hearing or provide a copy of the Judicial Counsel form Consent to Electronic Service for each non-represented person who was emailed notice. Any objections or responses to the Amended Petition are ordered to be filed at least ten (10) days before the next hearing. . If the parties cannot agree on a neutral private professional fiduciary, then the joint list will also be due ten (10) days prior to the next hearing.



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25-PRO-01540	IN RE THE SURVIVOR'S TRUST - ARTICLE 3 OF THE 1987 TRUST AGREEMENT OF NICHOLAS P. DAPHNE AND VIRGINIA DAPHNE	PETITION FOR: REMOVAL OF TRUSTEE AND; APPOINTMENT OF SUCCESSOR TRUSTEE AND CONFIRMATION OF TRUST ASSETS- Continued from 04/06/26
Line 11[Line 7 through 11]	Petitioner: Daphne, Orea Krestine (SYME, DAVID MICHAEL) Trustor: DAPHNE, NICHOLAS P. Trustor: Daphne, Virginia Guardian Ad Litem: BOHANNAN, BETH CHAGONJIAN	Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL [Related matters at line 7-11]

The Court adopts the Daphne Daphne's Guardian Ad Litem's recommendations filed in case no. **25-PRO-01540**. The court notes that the GAL's original recommendation/report was filed 4/27/2026, not 5/1/2026 as is set forth in paragraph 1 at line 22 of the GAL supplement.

The Court makes the finding that Daphne Daphne is incapacitated and unable to act as Trustee. The parties in this case are ordered to mediate pursuant to *Breslin v. Breslin* (2021) 62 Cal.App.5th 801 within ninety (90) days, in an attempt to obtain an agreement between them as to an appropriate, neutral, replacement for Ms. Daphne as Trustee of the Trust at issue. If the parties cannot jointly agree to one neutral private professional fiduciary, they shall jointly submit to the court a list of up to three names of neutral private professional fiduciaries to whom they can agree and the Court will choose one of the names to succeed Ms. Daphne as Trustee. The Guardian Ad Litem is discharged and the request for fees and costs of \$7,714.78 are approved.

This Amended Petition is CONTINUED to January 29, 2027 at 9:00 am for status and for Petitioner to file an amended proof of service showing that all non-represented persons were mailed a copy of the amended petition and notice of hearing or provide a copy of the Judicial Counsel form Consent to Electronic Service for each non-represented person who was emailed notice. Parties are ordered to file status reports ten (10) days before the next hearing and any objections or responses to the Amended Petition are ordered to be filed at least ten (10) days before the next hearing. If the parties cannot agree on a neutral private professional fiduciary, then the joint list will also be due ten (10) days prior to the next hearing.



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26-PRO-00415	Guardianship of Donald Israel Larios Miranda	
Line 12, 13	Petitioner: Larios Miranda, Donald Israel (AMBELIOTIS, VIRGINIA) Ward: Larios Miranda, Donald Israel Proposed Guardian: Larios Miranda, Jose Eduardo	Appointment of Guardian for Person of the Minor Petition for Special Immigrant Juvenile Findings
Tentative Ruling: APPEARANCE ORDERED (Zoom not allowed) The Court will GRANT both petitions and sign the order dispensing with notice for the father.		

26-PRO-00627	JOSEPH GATES vs. DANIEL JOSEPH JONES	Continued on 08/07/2026
Line 14	Petitioner: GATES, JOSEPH (Pro Se) Respondent: JONES, DANIEL JOSEPH	Request for Orders to Stop Elder or Dependent Adult Abuse
Tentative Ruling: APPEARANCE ORDERED (Zoom not allowed)		

26-PRO-00911	BLANCA ALCAIRE vs. BARBARA ANNE JARQUIO VERGARA	Continued from 08/12/26
Line 15	Petitioner: ALCAIRE, BLANCA (Pro Se) Respondent: JARQUIO VERGARA, BARBARA ANNE (GOODMAN, GRACE)	Request for Orders to Stop Elder or Dependent Adult Abuse



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Tentative Ruling:

APPEARANCE ORDERED (Zoom not allowed)

26-PRO-01012	IN RE THE REMAINS OF SCARLETT ROSE JOHNSON	VERIFIED PETITION FOR ORDER DETERMINING THE RIGHT TO CONTROL DISPOSITION OF THE CREMATED REMAINS OF A DECEDENT AND DIRECTING RELEASE OF REMAINS TO PETITIONER
Line 16	Petitioner: CICCIO, VANESSA RAMIREZ DI (FURNISS, LAURA M.) Decedent: JOHNSON, SCARLETT ROSE	Petition Hearing

Tentative Ruling:

NO APPEARANCE

Judge Novak is recused from hearing this case. The matter is continued to September 23, 2026 at 9:00 a.m. Parties should check the calendar the day prior for information as to what judge will preside over the hearing.



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26-PRO-01049	IRIS ANN HUERTAS GALLAGHER vs. RICHARD EDWARD HUERTAS	
Line 17	Petitioner: GALLAGHER, IRIS ANN HUERTAS (Pro Se) Respondent: HUERTAS, RICHARD EDWARD	Request for Orders to Stop Elder or Dependent Adult Abuse
Tentative Ruling: APPEARANCE ORDERED (Zoom not allowed) No proof of service filed.		

26-PRO-01076	RE ESTABLISH FACT OF BIRTH, HANNAH NICOLE RODRIGUEZ	
Line 18	Petitioner: RODRIGUEZ, HANNAH NICOLE (Pro Se)	Petition to Establish Fact, Time and Place of Birth
Tentative Ruling: APPEARANCE ORDERED (Zoom allowed) Petitioner is ordered to appear. If Petitioner fails to appear, the Court intends to DENY her Petition without prejudice for failure provide sufficient evidence for the orders requested.		

Hearings Total: 18